

IN THE MAGISTRATE COURT OF FULTON COUNTY IN THE STATE OF GEORGIA

CAMDEN SUMMIT PARTNERSHIP, LP A/A/F CAMDEN PHIPPS

Plaintiff,

vs Defendant.

Lauren Denise Thomas, All Other Occupants

Case Number: 25ED362028

) NOTICE OF MOTION AND MOTION TO
) QUASH SERVICE; MEMORANDUM OF
) POINTS AND AUTHORITIES;
) DECLARATION & REQUEST FOR
) EVIDENTIARY HEARING BY
) Lauren Thomas

NOTICE OF PROCEDURAL RIGHTS, GEORGIA LAW

1. **No Default While Motion to Quash is Pending**
Under O.C.G.A. § 9-11-4, proper service of process is required for the court to acquire personal jurisdiction. A motion challenging service raises a jurisdictional issue; the defendant cannot be defaulted until the court conclusively determines whether service was proper. The plaintiff bears the burden of proving valid service once challenged (IMC Construction Co., Inc. v. Mitchell, 365 Ga. App. 470 (2022))
[bfdlaw.com](https://www.bfdlaw.com).
2. **Defendant Entitled to Hearing When Service Is Disputed**
Georgia law does not compel an automatic evidentiary hearing in every contested service matter. However, where service is factually disputed, the defendant is entitled to request a hearing, and it is proper for the court, in its discretion, to hold one to resolve conflicting evidence regarding jurisdiction. This approach is consistent with the court's inherent authority and the Uniform Superior Court Rules governing motions to quash
[Fulton Superior Court](#).
3. **No Automatic Stay of Other Obligations**
Unlike Florida law, Georgia provides no statute staying unrelated procedural or substantive obligations (e.g., deposit, escrow, or rent-related duties) during a pending challenge to service. Any such stay must be specifically ordered by the court.

Defendant reserves all rights-including the right to seek appellate relief where fundamental rights are denied.